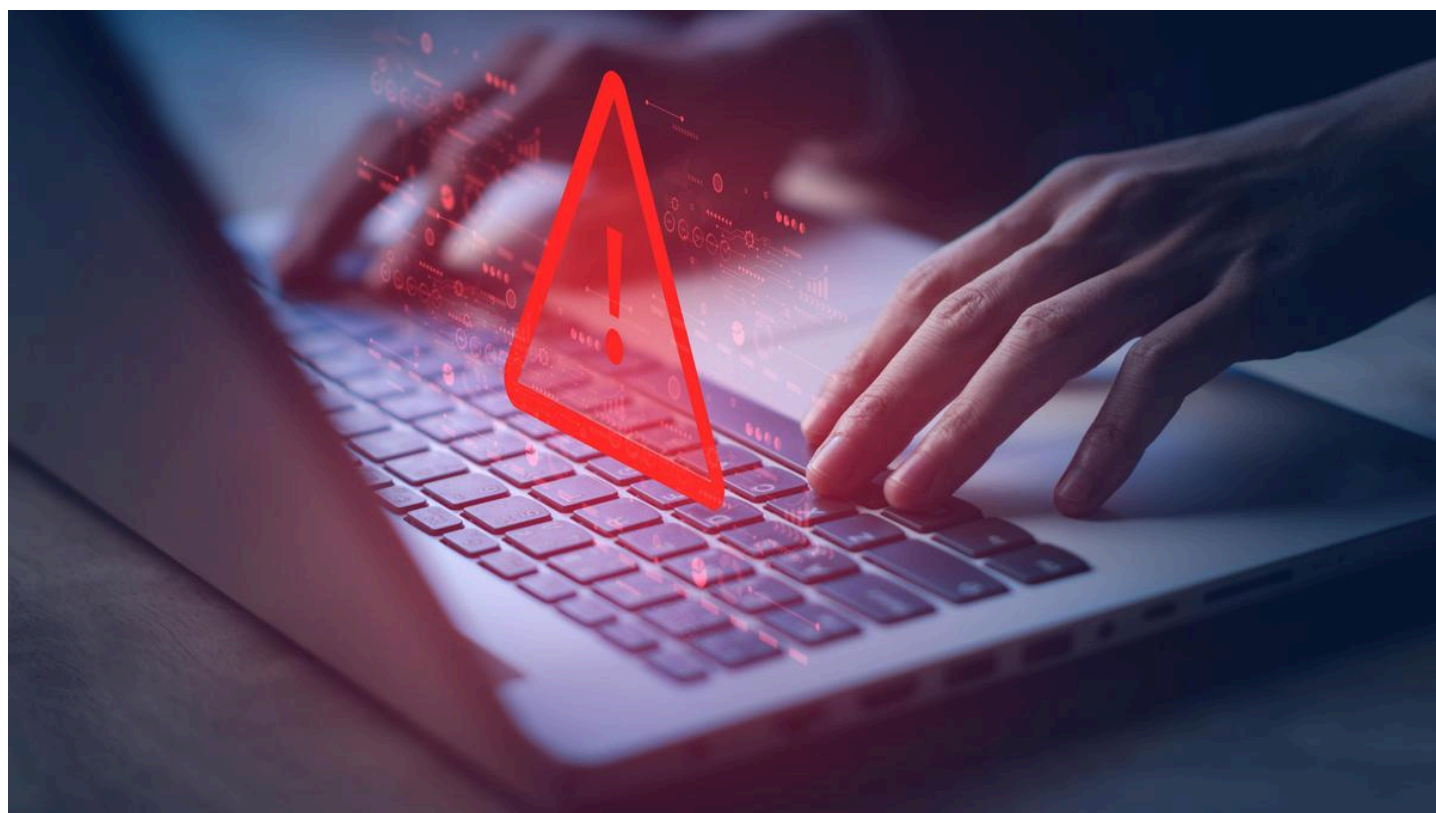


Understanding India's internet censorship regime

An internet user's experience in India depends on the ISP, which determines their access to content

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Representational image

The experience an Internet user has in India is closely tied to the Internet Service Provider (ISP) they choose. Perceived differences are not limited only to pricing and quality of service, but also to how much of the Internet a user can access, which changes from one ISP to another. This is because ISPs in India — much like everywhere else — block websites in response to government and court orders. However, implementation is not uniform across ISPs, and blocklists vary widely.

Sections 69A and 79 of the Information Technology Act, 2000, empower the government to issue blocking orders to ISPs and intermediaries. The licensing agreement for ISPs explicitly requires that they “block Internet sites [...] as identified and directed by the Licensor from time to time.” ISPs are confidentially bound to the blocking orders they receive and implement. In copyright and trademark dispute-related cases, blocking orders are made public as part of court orders. The blocking of websites usually only comes to light when users notice it is inaccessible and raise questions — such as what happened when Supabase

was recently blocked. In some instances, the government may choose to announce its blocking actions, such as when it announced the blocking of 59 Chinese applications including TikTok in 2020.

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